

Session and Chapter.	Short Title.	Extent of Repeal.
55 & 56 Vict. c. 31.	The Small Holdings Act, 1892.	Subsection (2) of section one. Section two. Subsection (2) of section four to "Provided that". In subsection (3) of section four the words "in the case of small holdings which may be let." Section five. In section eleven the words "and then to the person or persons whose lands immediately adjoin the holding." Section sixteen. In section twenty the words from "and the expression 'electoral division'" to "shall mean ward," and the definition of "county elector."
56 & 57 Vict. c. 73.	The Local Government Act, 1894.	In subsection (3) of section six the words "and of applying for the election of allotment managers," and "or the Allotments Act, 1890," and subsection (4) of the same section from "and for the purposes of section sixteen of the Small Holdings Act, 1892" to the end of the section. In subsection (3) of section nine, the words "or on any proceeding under the Allotments Acts, 1887 and 1890," and the words "or for the purpose of allotments, as the case may be." In subsection (5) of section nine, the words "or if the proceeding is taken on the petition of the district council, then the district council." In subsection (9) of section nine, the words "when made on the petition of a district council, by that council, and in any other case." Subsection (13) of section nine, to "is not so taken." In subsection (14) of section nine, the words "otherwise than for allotments," and from "and any land purchased" to the end of the subsection. Subsections (16), (17) and (18) of section nine. Section ten.

CHAPTER 55.

An Act to amend the Law relating to Cabs and Stage Carriages in London. [28th August 1907.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Fares for taxi-
meter cabs.
32 & 33 Vict.
c. 115.

1.—(1) The Secretary of State shall have power by regulations made under section nine of the Metropolitan Public Carriage Act, 1869, to fix the fares to be paid for the hire in London of cabs fitted with taximeters, either on the basis of time or distance or both, and so as to differ for different classes of cabs and under different circumstances. Provided that the fare fixed for horse cabs fitted with taximeters shall not be less than at the rate of sixpence for every mile so far as the fare is fixed on the basis of distance, and of sixpence for every twelve minutes so far as the fare is fixed on the basis of time, and that no fare shall be less than sixpence.

(2) Regulations made under this section, so far as inconsistent with any enactment relating to the fare to be paid for the hire of cabs in London, shall take effect notwithstanding that enactment, and any enactments relating to cabs in London shall, as respects cabs for which fares are fixed under this Act, be construed as if a reference to the fares so fixed were substituted for a reference to the fares fixed under any of those enactments.

Abolition of
privileged cab
system.

2.—(1) In the admission of cabs to a railway station, or in the treatment of cabs while in a railway station, the company having the control of the station shall not show any preference to any cab, or give any cab a privilege, which is not given to other cabs; and where any charge is made in respect of the admission of any cab to a railway station for the purpose of plying for hire therein, the charge made shall not exceed such sum as may be allowed by the Secretary of State.

(2) If it is proved to the satisfaction of the Secretary of State that it will not be possible to obtain a sufficient supply of cabs at a railway station for the proper accommodation of the public, unless the operation of this section is suspended or modified as respects that station, the Secretary of State may by order so modify or suspend the operation of this section with respect to that station, subject to such conditions as may be specified in the order.

(3) In this section the expression "railway station" includes the precincts thereof and the approaches thereto.

(4) Nothing in this section shall affect the liability of cabs or the drivers thereof to comply with any regulations or conditions which may be made by the company having control of a railway station for the purpose of maintaining order or dealing with the traffic at such station, including regulations as to—

- (i) The number of cabs to be admitted at any one time;
- (ii) The rejection of cabs and drivers unfit for admission; and
- (iii) The expulsion of any cabman who has been guilty of misconduct, or of a breach of the company's bye-laws or regulations.

(5) This section shall come into operation on the first day of January nineteen hundred and eight, and shall remain in force up to the first day of January nineteen hundred and ten.

3. The Secretary of State may by general or special order apply to stage carriages which on every journey go to or come from some town or place beyond London, or any class of such stage carriages, any provisions of the Acts relating to stage carriages in London, from which those stage carriages are exempted by virtue of section two of the London Hackney Carriages Act, 1843, or section five of the Metropolitan Public Carriage Act, 1869, subject to any exceptions contained in the order.

Application of statutory provisions to stage carriages plying partly within and partly without London.
6 & 7 Vict. c. 86.
32 & 33 Vict. c. 115.

4. The Commissioner of Metropolitan Police, and as respects the City of London the Commissioner of City Police, may give directions with respect to the stopping places for stage carriages in London, and if the driver or conductor of any stage carriage acts in contravention of any direction so given, he shall be liable in respect of each offence on summary conviction to a penalty not exceeding forty shillings.

Stopping places for stage carriages.

5. Section forty-eight of the Tramways Act, 1870 (which applies to tramways certain of the enactments relating to hackney carriages in London), and any enactments relating to stage carriages or metropolitan stage carriages in London, shall apply in the case of carriages used on any street or road in London by virtue of an order made under the Light Railways Act, 1896, in the same manner as they apply in the case of carriages used on a tramway.

Application of statutory provisions to carriages used on light railways running in streets.
33 & 34 Vict. c. 78.
59 & 60 Vict. c. 48.

6.—(1) In this Act the expression "stage carriage" has the same meaning as in the Metropolitan Public Carriage Act, 1869, as amended by this Act, the expression "cab" has the same meaning as the expression "hackney carriage" has in that Act, the expression "fare" includes any payment to be made for the carriage of luggage on a cab, and any other payment to be made in respect of the hire of a cab, and the expression "taximeter" means any appliance for measuring the time or distance for which a cab is used, or for measuring both time and distance, which is for the time being approved for the purpose by or on behalf of the Secretary of State.

Definitions.
32 & 33 Vict. c. 115.

(2) It is hereby declared that for the purposes of any Act relating to hackney carriages, stage carriages, metropolitan stage carriages, or cabs, in London, the expressions "hackney carriage," "stage carriage," "metropolitan stage carriage," or "cab" include any such vehicle, whether drawn or propelled by animal or mechanical power, and section seven of the London Hackney Carriage Act, 1833, is hereby repealed.

3 & 4 Will. 4. c. 48.

(3) In this Act the expression "London" means the Metropolitan Police District and the City of London.

Short title and
extent of Act.

7.—(1) This Act may be cited as the London Cab and Stage Carriage Act, 1907.

(2) This Act shall only apply to London as defined by this Act.

CHAPTER 56.

An Act to facilitate the provision of Land for certain Evicted Tenants in Ireland and for other purposes connected therewith, and to make provision with respect to the tenure of office by the Estates Commissioners. [28th August 1907.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Power to
acquire land
compulsorily.

1.—(1) If it appears to the Estates Commissioners that it is expedient to acquire any land for the purposes of this Act, and if they have offered to the person appearing to them to be the owner of the land a price which appears to them to represent the value thereof, and he has not within the prescribed time accepted the offer, they may, subject to the provisions as to appeal contained in this Act, acquire that land compulsorily for those purposes in accordance with the provisions of this Act, and shall declare any land so acquired to be an estate.

(2) The expression "the purposes of this Act" means the provision of parcels of land for—

- (a) evicted tenants to whom this Act applies, that is to say, persons mentioned in paragraph (d) of subsection one of section two of the Act of 1903, who, or whose predecessors, were evicted from their holdings before the passing of the said Act in consequence of proceedings taken by or on behalf of their landlords, and who made application to the Estates Commissioners before the first day of May nineteen hundred and seven to be put in occupation of holdings, and whom those Commissioners consider to be fit and proper persons to become purchasers under the Land Purchase Acts, not exceeding two thousand in all; and
- (b) new tenants to whom this Act applies, that is to say, tenants, and persons nominated by the Estates Commissioners as personal representatives of tenants, of holdings formerly occupied by evicted tenants to whom this Act applies.